THE LETTERS OF THE RAMBAM

# "He Knows Nothing"? Rulings, Rumours & a Troubled Dayan

Letter to Rav Pinehas, Part 3

**Source:** Igrot HaRambam: the letter to **Rav Pinchas ben Meshullam HaDayan** of Alexandria (Hebrew original, Shilat edition), Sections 3–5 and conclusion

**Shiur:** Given by Dayan Daniel Kada on Zoom, Tuesday 1 April 2025. The last class on the Rambam's letters before Pesach

*These notes are based on the Sofer.ai transcript of the recording.*

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## Recap

The fifth letter of the series (after **Ovadia**, **astrology**, **Ibn Jabbar** and **Kiddush Hashem**): to **Rav Pinchas**, who came from **Provence** to become dayan of **Alexandria**. The Rambam was **instrumental in his appointment**, "but they didn't see eye to eye on many things."

| Part | Content |
|---|---|
| 1 | **Be confident in halachah; rule by the truth, not by what people want to hear.** Pinchas gave in to people demanding washing after an emission before Torah and prayer. Not required for Torah, and for prayer **only a custom**, "and I myself am particular about this custom." **"I'm not angry, but I did take offence"** |
| 2 | **The Mishneh Torah:** no names (a ***chibbur***, not a ***perush***; names already in the introduction; names would make laws look like one man's opinion); people err ("I can't walk around with my book"); Talmud study (**"I teach Talmud a lot"**); sources (all from Chazal; the **story of the forgotten source**, and his ***agmat nefesh*** that he never wrote them down) |
| 3 | **Specific questions**: tonight |
| 4 | **Pinchas's troubles** at home: tonight |
| 5 | **A technical question on *kiddushin***: tonight |

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## Part 3: The Specific Questions

### a) "Did you say in public that I know nothing?"

Pinchas, quoted verbatim:

You said in public about **so-and-so, the dayan of Alexandria**, that **he knows nothing and is not proficient in Talmud.** Why would you say such a thing? **And I asked you many questions, and you**

**never answered.** *(And in a later letter:)* **Please teach me everything I asked.**

**Listen carefully to my answer. I never said anything of the sort, because I don't lie**, and it isn't true: you **do** know.

So what **did** he say? "He's admitting **something**." To understand it, some background.

## Background: two kinds of property a wife brings into a marriage

| | ***nichsei melog*** **נכסי מלוג,** | ***nichsei tzon barzel*** **("iron נכסי צאן ברזל, sheep")** |
|---|---|---|
| **Ownership** | Stays **hers** | Stays in **her name** |
| **Income (e.g. rent)** | Goes to the **husband** | Goes to the **husband** |
| **Rise or fall in value** | **Hers.** A house worth £100k at the wedding and £200k at a divorce five years later: the gain is hers; a loss is too | **The husband is responsible.** He must return **the full value**, even if it burned down or lost value |
| **For the husband** | Benefit, **no responsibility** | Benefit **and responsibility** |

(Cash generally goes in the *nedunya*, the dowry; this is about **property**.)

## The case of the gold jewellery

- In a dispute over a piece of **gold jewellery**, Pinchas had ruled that it was **tzon barzel**: the **husband is responsible** for it.
- Then the husband, **the son-in-law of Abu al-Faraj**, came back: *I don't want responsibility. I want it reclassified as melog***.
- The Rambam heard that **Pinchas ruled he could**, and could **force** it on the wife: "the best of both worlds" for the husband, all the benefit and none of the responsibility.

**I told Abu al-Faraj, the father-in-law: I don't believe Pinchas would rule like that. If he did, bring me proof.**

Then came **a letter signed by two responsible witnesses**: Pinchas had ruled publicly that **any husband may convert tzon barzel into melog**.

> **I was astonished at once.** That isn't the halachah. **What comes in under one law stays under that law.** If they **both agree**, that's different, but **the husband can't force it on the wife.** :מיד תמהתי

"There's no discussion about this. **He's wrong.**" With the Rambam were **another dayan and three or four others**; he showed them the letter, and **everyone was astonished**.

## What the Rambam actually said

**Don't be surprised: Pinchas comes from Provence, from France.** All the Jews in **Christian countries**, even their great rabbis, **aren't experts in practical law.**

| | Islamic lands (Egypt) | Christian lands (Provence, France) |
|---|---|---|
| **Jewish courts** | **Proper, permanent *batei din*** | Not allowed; **makeshift** *batei din* |
| **Monetary and marital cases** | **Daily**: "bread and butter" | Rare; "not on their fingertips" |
| **Result** | Answer readily | **Take a long time**, must search and analyse, and can err |

**His analogy:** "If the Temple were rebuilt today and you came running to me with a practical question about a **sacrifice**, I couldn't answer straight away. I'd have to search, think, analyse, because it isn't something we do regularly."

**The Gemara's point:** you can master all the books, but you can't compare even a sage who knows the whole Torah to someone who has **faced practical questions**. "Any rabbi will tell you they remember best **what they've taught and what they've been asked**." Practical questions force you to think things through.

**"God testifies that this is exactly what happened. I'm not adding or subtracting."**

So the rumour **evolved** from *"he comes from a country without regular courts, so he struggled and got it wrong"* into *"the Rambam says he knows nothing."*

### Was it *lashon hara*?

The Rambam **doesn't apologise**. Why wasn't it *lashon hara*?

- Saying a ruling is **wrong** isn't *lashon hara*. If someone says *Rabbi X told me this is the halachah* and you **know** it isn't, saying *that rabbi is wrong* is **giving the correct ruling**.
- Adding *"he's from France, where they have no batei din"* **depends on tone**. Said derogatorily ("*these Ashkenazim, they know nothing*"), it might be. Said **to explain**, *understand their culture; they lack the experience we dayanim in Fustat have*, it isn't. "He's not saying it **to demean** Pinchas, **just to explain**."

## b) "You never answer my questions"

**I swear I don't know of any question you asked that I didn't answer**, except **one, about marriage**, which came while I was **ill**. I'll answer it **at the end of this letter**.

The rest:

| What Pinchas asked | The Rambam's response |
|---|---|
| **One question, over and over** (its content isn't stated) | **"You harassed me with this question."** I gave my answer. **Do what you want. Stop asking** |
| **A question about a *get*** | I answered **with proofs**; you came back: *I still don't see why you said it's kosher.* **I kept quiet** |
| **Anything else** | Perhaps **lost in the post**. **Ask again** |

**My way, always:** when I debate with someone and see **he won't budge** or consider the other side, **I fall silent and leave him to his view.**

"**An important principle in life.** If you're trying to teach someone, you give your opinion, and they persist, **leave them and move on.** Don't waste your time."

**The Rabbi's own pre-Pesach example:**

"A week ago someone asked me: **can you buy Coca-Cola?** I said yes. Full stop. Last night he texted: *I asked another rabbi and he was very surprised at your ruling. Can you explain your reasoning?* **I didn't answer.** Every year I get this. **You have to know when to move on.**"

## c) The widow and the three signatures

A **widow** was disputing a property (a house or courtyard) with her **children**. The ruling: **she needn't take an oath**, because she's **in possession**, so the children **can't claim** it. The Rambam answered **and had two other dayanim sign** with him.

**Background:**

| | תשובה, responsum | פסק, ruling |
|---|---|---|
| **What** | A question sent **from afar**; you give your opinion | **The parties appear** before you |
| **Who signs** | **The rabbi alone** | **All three dayanim** |

This was a **responsum** from Alexandria to Fustat, so Pinchas asked: **why three signatures?**

**You're right; normally I'd sign alone.** But I was told that if only I signed, you'd tell the **secular judge**: *this rabbi says that, I say otherwise; who's right?* and the case wouldn't come out correctly. With **three rabbis**, your view would be the **minority**. **So I forwent my honour** and signed with the others to make sure the ruling stood.

**"Don't accuse her."** Pinchas had suggested the widow **wasn't afraid to swear**, so of course she'd claim what she claimed.

**How dare you say that about a Jew?** How can a sage like you say it? **Only the wicked aren't afraid to take an oath.** Don't accuse this woman of being one of them.

## d) The *get* sent by agent

**Background 1: a *get* by agent.**

- A *get* can be handed over **directly** or via a **shaliach**, "from one end of the earth to the other." "We do this nowadays all the time; we send *gittin* to Israel."

- **She is divorced only when the *get* reaches her hand.** Until then **anything can cancel it**: the agent **resigns**, **dies**, falls **ill**, **loses** it, or **the husband retracts**, without even telling the agent.

- "A terrible thing to do," so **nowadays the husband takes a full oath not to retract** the agency.

**Background 2: conditions in a *get*.** (Theoretical: "this is avoided nowadays for many reasons.")

| | "על מנת", "on condition that" | Other wording |
|---|---|---|
| **Takes effect** | **Now.** Once she fulfils the condition (say, delivering a parcel to someone), she is divorced **retroactively** from today | **Only once the condition is fulfilled** |
| **Can she remarry meanwhile?** | **Yes** | **No** |
| **Formal requirements** | **None**: very easy | Strict: **double the condition** (*tenai kaful*), state **the positive before the negative**, etc. |

**The case:** the same son-in-law of **Abu al-Faraj** came to the Rambam: *Abu al-Faraj treated me badly; he made me divorce his daughter, though she never asked for it.* While talking with him, the Rambam realised **the *get* was being sent by agent**.

So, cleverly, he wrote to **Abu al-Faraj**: *has your daughter received the get yet?* **Not yet**, came the answer, with the text of the *get* and the agency. **"Don't delay. Make sure she receives it quickly."**

**Two criticisms of Pinchas:**

1. **You dawdled.** A *get* by agent **can be annulled at any moment**: the agent could **die**, be **killed**, **drown at sea**, be **lost**. "**What use is a dayan who doesn't think proactively** and tell her to go and receive her *get*?"

2. **You mixed the formulas.** You used *al menat* **and** doubled the condition with positive before negative. **Unnecessary**: *al menat* needs none of that. "It doesn't actually invalidate anything, but **it's not appropriate for someone like you to write mixed messages.**"

**"Chacham gadol."** The Rambam calls Pinchas "**a great sage**" **four or five times** in the letter. "I don't know if he literally means it, or is saying *how can a great person like you keep making these mistakes?* Maybe you're not as great as people say."

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## Part 4: Pinchas's Troubles at Home

"Much shorter; we've done the main bits." Pinchas "**seems to be suffering a lot**."

| Trouble | The Rambam's response |
|---|---|
| **Avraham** goes around Alexandria saying **"the Rambam is right and Pinchas is always wrong"** | *God knows I scolded him, by word and in writing.* "He thinks he's helping me. **I told him clearly: I don't want your help.** Don't speak badly about Pinchas." **He made him swear to stop** |
| **Abu al-Faraj** says Pinchas ruled for the son-in-law because **they're friendly**: they **eat together**, and Pinchas got **benefits** from him ("not exactly bribes, but close") | *I wrote to Abu al-Faraj: that's not why. He made a mistake, and even the Supreme Court can err, as the Torah says.* "**I pacified him.**" |
| *"You said in public that I have an angry disposition"* | **"Yes, I said it."** (Below) |
| Rumours Pinchas wants to **return to "Rome"**, to Christian Europe (Shilat's note) | **Don't.** Don't leave where you're established |
| **Abu Zikri** causing trouble | **Don't worry; he's powerless** |

## "Yes, I said you're angry", "the best bit of the whole letter"

"Everywhere else he defends himself robustly. Here it seems like **checkmate**: Pinchas says *you called me an angry person in public*, and the Rambam says **I won't lie. I said it.**"

**How he gets out of it:**

The Gemara: when a **talmid chacham** gets angry, it's **the Torah that heats him**: **הלא כה דברי כאש**, "are not My words like fire?" **I was praising you** in the Gemara's words: **your anger is the anger of Torah.**

"Fascinating." "It is difficult, I agree."

## Make peace with Rabbi Daniel

The context: Pinchas's feud with **Rabbi Daniel** (Part 1: Daniel had ruled leniently on washing, and Pinchas opposed him).

**That's what upsets me. Why don't you get on with Rabbi Daniel?** He's **a great person, God-fearing**, and he's bringing people to do good, **in Fustat and in Alexandria**. **Be friends; study together.** If you let him teach **my Mishneh Torah** to others (**under your leadership, of course**), you could **ignite** so many people with the depths of Torah. **I wish it would happen. Make up with each other.**

## "Don't go back to Europe"

"We don't have Pinchas's letters, but from everything the Rambam quotes, **he seems to be going through a lot**: complaining about this person and that person, the Rambam, the ruling, the people who came to him." **Don't leave your place under pressure.** (One line, about going "to places with armies," is unclear.)

## Was "Avraham" the Rambam's son?

**The Rabbi's own idea** ("I just realised this now; **no one says this**, I have no proof"):

- When the Rambam names people he usually adds **"Mar"** or **"Abu"**; here it's just **"Avraham"**.

- Pinchas **expects the Rambam to control** Avraham, and the Rambam **can order him to stop and make him swear**.

- **The Rambam's only son was Avraham** (**Rabbeinu Avraham ben HaRambam**; he also had a daughter).

So perhaps **Avraham was the Rambam's son**, zealously defending his father.

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## Part 5: Is *Kiddushin* by Money Biblical or Rabbinic?

"I don't know if you could spend a whole shiur on it, but briefly." Pinchas's unanswered question, the one that came while the Rambam was ill.

### Background: three ways to betroth

| Method | | Source | Most opinions | The Rambam (Mishneh Torah) |
|---|---|---|---|---|
| **כסף**, money | Something of financial value | A **gezeirah shavah**, an extrapolation by the Sages | Biblical | **Rabbinic** |
| **שטר**, document | A betrothal document (not the *ketubah*) | Also an **extrapolation** from a verse | Biblical | **Biblical** |
| **ביאה**, relations | With intent to betroth | **Explicit**: **ובעלה** | Biblical | **Biblical** |

### The Rambam's answer

**1. Go and read my *Sefer HaMitzvot*.** Written in **Arabic** (we now have it in Hebrew); **Sa'adia in Alexandria has a copy**. It sets out **14 principles** for which commandments count among the **613**.

**Learn those 14 principles and you'll see that everyone who counted the mitzvot before me got it wrong.**

**Background on counting:** the Gemara says there are **613**, but go through the Torah and you can find **many more**. So which count? Many tried, including **Rabbi Abba Kira** (7th–8th century) and **Shlomo ibn Gabirol**. The **Azharot** read at Minchah on **Shavuot** are poems counting the 613, "and they include things the Rambam says are **completely wrong**." (The Rabbi gave a Zoom shiur on this two or three years ago.)

**2. The principle** (Sefer HaMitzvot): of the **13 hermeneutic rules** (said every morning at the start of Shacharit), **what the Sages derive through them does not automatically become *de'oraita***. It counts as biblical only **where the Sages say explicitly that it is**.

So:

- **Relations**: **explicit** in the verse, so **biblical**.

- **Money**: derived by **gezeirah shavah**, with no explicit statement, so **rabbinic**.

- **Document**: **also** derived. **"You're right; by my principle it should be rabbinic."** But **the Gemara clearly treats it as *de'oraita***, so he counted it biblical.

"This is a whole shiur on its own: what *de'oraita* and *de'rabbanan* mean here."

### Did he retract?

**Rabbeinu Avraham**, the Rambam's son, says his father **retracted** and held that **all three** are biblical, as almost everyone does. "**It's not clear** he did. Much ink has been spilt over this."

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## The Close

**My chieftain, don't worry about answering everything I've written.** But equally, **don't expect me to answer everything you write.** I'm **very busy** and **very weak**. I haven't the time or strength **even to read** the letters I receive, let alone answer them. **If you have practical questions, send them.** Otherwise I have no time, **because of my constant weakness, and because I need to learn a little myself.**

Dated **the 35th day of the Omer**.

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## Summary of the Whole Letter

| Part | |
|---|---|
| 1 | **Washing after an emission**: rule by the halachah, not the crowd; washing before prayer is only a **custom** |
| 2 | **The purpose of the Mishneh Torah**: a ***chibbur*** like the Mishnah; **no names**, **no sources**, all from Chazal; **study Talmud too** |
| 3 | **"He knows nothing"?** Never said it. Pinchas got **tzon barzel vs melog** wrong, explained by his coming from **lands without Jewish courts**, said **to explain, not demean**. **Unanswered questions:** "you harassed me," and **when someone won't budge, move on**. **Three signatures** to make the widow's ruling stand; **don't accuse her** of a false oath. The ***get* by agent**: **act fast**, and **don't mix the condition formulas** |
| 4 | **Pinchas's troubles**: the Rambam **rebuked Avraham** and **pacified Abu al-Faraj**; "angry" meant **the fire of Torah**; **make peace with Rabbi Daniel**; **don't go back to Europe** |
| 5 | ***Kiddushin* by money is rabbinic** because derived law isn't automatically biblical (**Sefer HaMitzvot**); **document** is biblical because **the Gemara treats it so**. His son says he **retracted** |
| **Close** | **"Don't expect me to answer everything. I'm busy and weak, and I need to learn a little myself."** |

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## Coming Up

This completes **five letters**, learned **January to March**: Ovadia, astrology, Ibn Jabbar, Kiddush Hashem and Rav Pinchas. **A new series of the Rambam's letters after Pesach**, including the letter to **Ibn Tibbon**, which seems to say the opposite about Talmud study. The class closed with a discussion of the format going forward.

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